

September 28, 2026
Dept. 9
Probate Tentative Rulings

9.	26PR0172	IN THE MATTER OF THE CLAYETTA H. SPELTZ REVOCABLE FAMILY TRUST DATED APRIL 16, 2015, AS AMENDED
PETITION HEARING		

At the hearing on July 27, 2026, the Court ordered Trustee to provide a complete copy of the Accounting to the Court and all beneficiaries and for the Parties to file a Declaration of what has been completed 10 days prior to the hearing set on September 28, 2026.

On September 18, 2026, Respondent, Kathleen Dolan ("Respondent" or "Trustee"), filed a Declaration of Kathleen Dolan which included copies of the following: 1) estate planning documents; 2) an accounting for the period of May 16, 2024, through May 10, 2025; and 4) an accounting for the period May 11, 2025, through April 30, 2026.

Respondent also filed a Response and Objection to Petition to Compel Accounting; to Compel Distribution of Trust Assets; to Suspend and Remove Trustee; to Prohibit Kathleen Dolan from Defending the Petition at the Trust's Expense. Respondent asserts that upon finding that Decedent, Clayetta H. Speltz ("Decedent"), had been financially taken advantage of by third parties and was suffering from vision impairment, Decedent left Colorado to live with Respondent in California.

In January 2023, Decedent decided to utilize the services of Respondent's business to handle the paperwork for her properties and taxes with deferred compensation until 2024 when some funds became available. In addition, all of Decedent's bank accounts were placed on a 90 day hold due to bank fraud. Respondent advanced fees for Decedent's benefit for approximately two and a half years while Decedent's financial affairs stabilized. Respondent fronted expenses for the management of Decedent's seven properties. Respondent contends she acted in good faith, made numerous attempts to share information with the beneficiaries, and believes the Trust is in a position where the remaining properties can be sold. As the accountings have been contemporaneously filed, Respondent asserts the pending Petition is moot.

TENTATIVE RULING #9:

APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, SEPTEMBER 28, 2026, IN DEPARTMENT NINE.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.